Brihanmumbai Custom Brokers Association

(Formerly known as Brihanmumbai Custom House Agents' Association)

BCBA/KD/270/2018

Date: 26.5.2018

The Commissioner of Customs (Import)
Air Cargo Customs
Air Cargo Complex
Andheri (E),Mumbai 400 099.

Dear Sir,

Sub.: Agenda Points for ACC TFC meeting scheduled to be held on 29th May 2018

We are forwarding the following Agenda Points for the TFC Meeting to be held on Tuesday, 29th May 2018.

1) The registration of RMS bill of entries are being allowed only up to 6.30 p.m. causing difficulty for clearance. RMS registration should be permitted 24x7 (Customs)

2) Shipments requiring Animal Quarantine (AQ) NOC are required to be forwarded to their Navi Mumbai office due to absence of any official at Air Cargo, Mumbai. Moreover, practice of giving NOC to out of scope items against import documents submitted by e-mail has been withdrawn and the CB's are required to visit the AQ office at Navi Mumbai with hard copy of documents. We request that to reduce dwell time and for ease of doing business the following is implemented :
   a) Official from AQ should be deputed at their ACC office for granting NOC.
   b) Import document submission via e-mail should be permitted for out of scope items.
   c) AQ office should notify the list of products which are out of scope and for which NOC is not required (similar to what FSSAI has done)

   (PGA – AQ)

3) The situation at AIR INDIA warehouse is a cause for concern and continues to be alarming. The acute shortage of Forklifts has caused serious delays and affected deliveries. The staff on duty is helpless and escalation at senior level we have only received assurances but there is no change at ground level. We request the house that since no solution is forthcoming, MIAL should take over this activity in larger interest of the Exim trade. (Air India / MIAL)

4) The photocopying vendor appointed by MIAL should display the charges as there are complaints from members that the vendor is charging higher rates than the normal charged for photocopying the documents. (MIAL)

5) Any other point with permission of the chair.

Thanking you,

Yours faithfully,
For Brihanmumbai Custom Brokers Association

Ketan Desai
Chairman
Air Cargo Customs (Import) Committee

CC to
Mr Manoj Singh, Sr VP, MIAL
Mr. K R Suresh GM-GH (Co-ord)., WR, AIATSL
Pro Cell, ACC, Mumbai
ACAAI.

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सीमाशुल्क आयुक्त (आयात) का कार्यालय
OFFICE OF THE COMMISSIONER OF CUSTOMS (IMPORT),
मुंबई ज़ोन -III, जन संपर्क अनुभाग, हवाई माल संकुल
MUMBAI ZONE – III, PRO CELL, AIR CARGO COMPLEX,
सहार, अंधेरी (पूर्व), मुंबई- ४०० ०९९
SAHAR, ANDHERI (EAST), MUMBAI – 400 099
e-mail- proaccsahar@gmail.com Phone-022-22816696

F.No. S/3-MISC-PRO-516/2013 ACC(I) Part III Date: 09 .05.2018

दिनांक 24.04.2018 को सम्पन्न स्थायी व्यापार सुविधा कमिटी की बैठक का कार्यवृत

MINUTES OF THE PERMANENT TRADE FACILITATION COMMITTEE MEETING HELD ON 20.03.2018

स्थायी व्यापार सुविधा कमिटी की मासिक बैठक दिनांक 24.04.2018 को 11:30 बजे हुई। जिसकी अध्यक्षता संयुक्त रूप से श्री विनायक आजाद, आयुक्त (आयात) और श्री विनय बृज सिंह, आयुक्त (विशेष हवाई माल) द्वारा की गयी।

The monthly meeting of the Permanent Trade Facilitation Committee (PTFC) was held on 20.03.2018 at 11.30 A.M. and was jointly presided over by Shri Vinayak Azaad, Commissioner of Customs (Import), ACC, Sahar and Shri Vinay Brij Singh, Commissioner of Customs(APSC).

निम्नलिखित अधिकारियों व हितधारी संगठनों के प्रतिनिधि ने इस बैठक में भाग लिया।

Following officers and representatives from the stakeholder organizations participated in the meeting:

नाम व पद/ Name & designation	संगठन/Organization
श्री राजू सक्थिवेल/Shri Raju Sakthivel अपर आयुक्त (निर्यात)/Addl. Commissioner (Export)	Customs, ACC, Andheri सीमाशुल्क, हवाई माल संकुल, अंधेरी
श्री सुखजीत कुमार/Shri Sukhjit Kumar, अपर आयुक्त (आयात)/Addl. Commissioner (Import)	Customs, ACC, Andheri सीमाशुल्क, हवाई माल संकुल, अंधेरी
श्री पवन खेतान Shri Pawan Khetan, संयुक्त आयुक्त (आयात)/Jt. Commissioner (Import)	Customs, ACC, Andheri सीमाशुल्क, हवाई माल संकुल, अंधेरी
श्री कैलास वि. कारखिले/ Shri Kailas Vinayak Karkhile, सह. आयुक्त (आयात)/Asstt. Commissioner(Import)	Customs, ACC, Andheri सीमाशुल्क, हवाई माल संकुल, अंधेरी
श्री प्रसाथ जे./ Shri Prsath J., AC(Import) सह. आयुक्त (आयात)/Asstt. Commissioner(Import)	Customs, ACC, Andheri सीमाशुल्क, हवाई माल संकुल, अंधेरी

Name of attendees from stakeholder organizations	संगठन/Organization
Shri K. D. Dhule, Shri R. Bidkar, Shri S.M.Sharma	Air India
Shri Manoj Singh, Shri Nandan Kanchan, Col. Lokesh(Retd.), Shri Gaurav, Ashok Satavase, Mr. B. Agha	MIAL (Custodian)
Shri Ketan Desai, Shri Dushyant Mulani, Shri Kaushal Thakker, Shri Sanjeev Harale, Shri Paresh R. Sangani, Mr H. Fernawish, Mr. C.A. Veeramani	BCBA (formerly known as BCHAA)
Shri Nimish Desai, Shri Paresh Shah	WISA
Shri Bala Ayer, Shri M.G. Chaurasia	ACAAI
Smt Jyotsna Patil	Jet Airways
Shri S.K. Singh	SBI
Shri Mahendra Yadav, Shri Pushkar, Mr. Prathmesh Shirambekar	FedEx

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1. Points from the previous PTFC meetings which were taken up for discussion:

A. Simplification in 1st time import procedure

In the previous meetings, the representative of BCBA requested for issuance of a Public Notice in line with Public Notice No. 112/2017 issued from JNCH, Nhava-Sheva whereby only one document i.e. either copy of Aadhar or IT Return is required to be submitted. The representative of BCBA also stated that vide Circular No. 02/2018-Customs, Board has simplified the norms for KYC verification in the case of import or export through Courier. Further, the representative of ACAAI stated that the department should not discriminate between Courier and Cargo as regards KYC verification, accordingly, they requested for issuance of a Public Notice in line with the said circular.

The Chairman informed that the process of simplification of KYC documents and it verification has already been initiated and the same will be sorted out shortly. Hence, the point is closed.

[Action: Point Closed]

B. NOC for import of Vaccine

In the previous meeting the representative of BCBA informed the house that while import of vaccine the documents were only transferred to ADC for their NOC. Now, since some days it has been noticed that import of vaccine are also being referred to Animal Quarantine for NOC which results in undue delay of clearance of consignment. Earlier, it was felt that this was a system (ICES 1.5) error and the same would be taken up with the DG(System) as well as Single Window Team of CBEC.

In the meeting, the Chairman informed the house that the matter has already been taken up by the Additional Director General, RMD with DG Systems(Single Window), CBEC, New Delhi for rectification. Hence, the point is closed.

[Action: Point Closed]

C. Increase in dwell time due to non-intimation of arrival of cargo by FedEx, UPS

In the previous meeting the representative of BCBA informed that on account of late intimation for arrival of cargo by carrier such as FedEx, UPS etc., there is increase in dwell time for clearance. This results in delay of clearance and non-compliance of Custom Notification No. 26/2017 NT which mandates filing of Bill of Entry in advance or on the same day of arrival. The representative of MIAL informed the house that they had taken a meeting with the representative of the UPS and FedEx and informed that the segregation work is being done after landing of flight into India which causes delay in further clearance process. They suggested that such segregation should be carried out at the initial point of loading to avoid unnecessary delay. In this regard, a meeting with FedEx and UPS had been convened and they are exploring the possibility to avoid the late initimation. Hence, the point is closed.

[Action: Point Closed]

D. Proper working of 24x7 facility

In the Previous meeting the representative of BCBA stated that for timely clearance of import / export cargo, CBEC has introduced 24x7 schemes. However it is experienced that all stakeholders are not available to facilitate clearance under 24x7. Inspite of presence of Custom Officers, the other stakeholders such as Airlines, Console Agents are not available on holidays, 2nd Saturdays and even on normal working day as they have restrictive working hours.

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The Chairman informed the house that the Facility of Direct port delivery has been recently started at Air Cargo Complex and further steps in this regard will be taken in due course. Hence, the point is closed.

[Action: Point Closed]

E. **Release of DO**

During the meeting, the representative of ACAAI submitted that in some cases delivery of import consignments are delayed because DOs are not released by the Airline / Consol agents. This increases the dwell time and unnecessary demurrage. They requested to issue a Public Notice that all DOs should be released within one hour after payment of all dues are made.

The representatives of Airline/Consol Agents informed the house that before issuing DO, they have to complete some formalities which takes time. However, they assured that they will try to minimize the time taken by them to avoid hardships to the trade. Hence, the point is closed.

[Action: Point Closed]

F. **Not accepting payment via RTGS/Cheque**

In the meeting, the representative of BCBA submitted that Air France, Singapore airlines not accepting payment via TGS/ Cheque, ACC P.N. 16/2016 is ignored by the airlines; this results in delay in clearance and increases cost. The representative of Airlines assured the house that they are working on the same so as to accept the payment via TGS/Cheque etc. Hence, the point is closed.

[Action: Point Closed]]

G. **Scanning the bar code instead of writing the examination report by Examining Officers**

In the meeting, the representative of ACCAI submitted that in Courier Cell, the examining officer need not write the examination report after examination. He merely scans the bar code with his "bar code reader" and examination report immediately captured by the system. They demanded the same facility at ACC so that the dwell time would be considerably reduced. The DC, (EDI) informed that Commissionerate has already taken up the matter with DG (System) to provide 'Hand Held Devices' and on receiving of the same, situation will improve significantly. The Chairman also informed the house that the matter has already been taken up with the DG Systems, CBEC, New Delhi. Hence, the point is closed.

[Action: Point Closed]

H. **Delay in giving IGST Credit by CONCOR**

In the meeting, the representative of BCBA submitted that a large No. of Custom Brokers/Importers have not got GST Credit from CONCOR. They requested that as per time line set by GST, the credit should be given immediately. The representative of MIAL informed the house that the CONCOR has expedited the GST Credit. The issue of non-Credit of GST will be resolved soon. Hence, the point is closed.

[Action: Point Closed]

I. **Delay in acceptance of Customs cleared Cargo by Airlines in Export Heavy Shed:-**

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In the meeting, the representative of ACCAI submitted that In Export Heavy Shed, airlines delay acceptance of customs cleared cargo as they insist on checking BAG first and then accept the documents. This holds up their staff who are unable to attend other work. The matter had been discussed before and it was decided that airlines cannot make the Customs Broker wait till they have checked with BAG counter.

The representative of Airlines stated that the handing over of cargo to Airlines is very sensitive/important in nature. Hence, Airlines cannot deviate from the lead Standard Operating Procedures. However, the Chairman directed the representative of Airlines to look into the matter to avoid inordinate delay. Hence, Point is closed.

[Action: Point Closed]

2. New point taken for discussion in the meeting

A. Problem of frequent reprint after OOC in import Shed

During the meeting, the representative of BCBA submitted that Trade is experiencing error in printing of BEs after OOC has been granted in import shed. Thus resulting in reprinting of the same. As, the command of reprint has been granted by DC Shed. The member of BCBA requested that for the BEs for which OOC given late in the evening, i.e. after DC/AC Shed has left office, the reprint command should be assigned to somebody else so that delivery would not be held up. The DC(EDI) has informed the house that this is a system related problem and will be sorted out. Hence, Point is closed.

[Action: Point Closed]

B. Goods registration in import shed

During the meeting, the representative of BCBA submitted that With introduction of 24X7 working, the TA should also be posted on 24X7 basis so as to facilitate the trade with ease of registration and reduction in dwell time.

The Chairman informed the house that the Facility of Direct delivery has been recently started at Air Cargo Complex and further steps regarding posting of TA on 24X7 will be taken in due course. Hence, the point is closed.

[Action: Point Closed]

C. Issues with E-Sanchit

During the meeting, the representative of BCBA submitted that

(a) E-Sanchit has been introduced with a view to provide paperless working environment and hence the customs Officers should not insist on producing the hard copy of the BE folder for assessment, examination and OOC.

(b) Filing of BE through E-sanchit is taking atleast additional 7-10 minutes instead of one minute earlier.

(c) Frequent Error code being received under E-Sanchit. They requested to address the matter with Directorate of System, Delhi .

(d) For filling document under E-Sanchit, one has to log-in through ICEGATE. It is experienced that this log-in takes considerable time and hence the issue also needs to be discussed with Directorate of System Delhi.

(e) It is experienced that if a job is submitted under E-Sanchit and if BE number is not getting generated on that day, the same is re-submitted with a fresh job number.

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However, it is experienced that next day the BE numbers are received on the old job numbers. However, it is experienced that next day, the B/E numbers are received on the old job numbers.

The chairman informed the house that the E-sanchit scheme has been started recently. The difficulties facing by the trade will be resorted as and when the system would start functioning normally. However, the Chairman directed the DC(EDI) to take up the matter with DG, Systems at the earliest. The Point is closed.

[Action: Point Closed]

D. Discontinuation of DMS charges

During the meeting, the representative of BCBA requested to discontinue the DMS procedure and charges since E-sanchit is already performing the same function. The chairman directed the representative of BCBA to give representation on the issue so that further action be taken. Point is closed.

[Action: Point Closed]

E. Request for appointment of 2 Appraising Officers for SB assessment

During the meeting, the representative of BCBA Requested for appointment of 2 Appraising Officers for SB assessment with a view to reduce the dwell time for exports. The chairman observed that the said issue had already been discussed in the earlier PTFC meeting. Hence, the point is closed.

[Action: Point Closed]

F. Frequent breakdown in CARR messages exchange in export shed

During the meeting, the representative of BCBA submitted that frequent breakdown in CARR messages exchange in export shed is delaying the clearance for exports. The chairman directed the DC(EDI) to look into the matter and resolve the problem.

[Action: EDI]

G. Proper exhaust System required in MIAL warehouse to provide safe working condition for representatives of Customs, CB etc. in the shed.

During the meeting, the representative of BCBA submitted that Proper exhaust System required in MIAL warehouse to provide safe working condition for representatives of Customs, CB etc. in the shed.

The representative of MIAL has informed the house that they are installing exhaust fan and assured the house that the problem, if any will be sorted out soon.

[Action: MIAL]

H. Difficulties faced by trade with Air India

During the meeting, the representative of BCBA submitted that they are facing tremendous difficulties with Air India Shed due to non-availability of fork lifts, lack of loaders to handle the packages, etc.

The representative of Air India has informed that they are trying to solve the problem, but due to proposed disinvestment of Air India, they are unable to invest in

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procurement of new fork lifts. However, the chairman directed the representative of Air India to solve the problem faced by the trade.

[Action: AIR INDIA]

I. Tremendous delay in release of online DO

During the meeting, the representative of BCBA submitted that they are facing tremendous delay in release of online DO in terms of PN No. 09/2015-16, dated17.07.2015, thus leading to bunching of consignment in the evening peak period. Hence, they requested to take necessary steps to ensure that the online DOs are available early in the morning in order to avoid bunching of consignments in the evening. The Chairman directed the custodian i.e MIAL/Air India to look into the matter and resolve the same.

[Action: AIR INDIA/MIAL]

J.. CCTV surveillance in all the shed areas.

During the meeting, the representative of BCBA requested to install proper CCTV surveillance in all the Shed Area as this is very essential for overall safety and security. The representative of MIAL has informed that they have already installed CCTV in their Shed Areas. The representative of Air India has informed the house that the CCTV has been installed in the main Area of their Shed. The Chairman directed the representative of Air India to submit the details of area where CCTV has been installed alongwith the areas where CCTV has not yet been installed.

[Action: Air India]

K. Monsoon preparedness

During the meeting, the representative of BCBA requested the authorities/custodians to ensure that proper steps are taken well in advance before onset of monsoon to ensure that all the import and export consignments are in safe and sound condition. Further, they are requesting to MIAL to ensure that all the Nallas (drainage system) in and around ACC are desilted and cleaned properly to avoid water logging in Air Cargo Complex during monsoon.

The representative of MIAL has informed the house that they are in contact with BMC and doing all the necessary arrangement

[Action: MIAL/Air India]

L. Integration of RBI-BRC module

In the instant meeting, the representative of ACCAI requested to refer PN 24/2016 dated 15.07.2016 regarding integration of RBI-BRC module. The notification states that after 01.04.2014, exporters need not submit negative statements. They stated that, the integration between banks and RBI is not taking place. Till this integration is confirmed, they requested to accept the negative statements from the exporters' and ensure that they are not served with SCN or their IEC should not be blocked.

The Chairman directed Addl. Commissioner(Export) to look into the matter.

[Action: ADC(X)]

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M. Amendments charges on BE should appear on TR 6

During the meeting, the representative of ACCAI submitted that any amendments charges on BE should appear on TR 6. Appraiser can input this charge. This will save us going to cash counter for payment of amendment charges. This will save time and thus reduce dwell time. This is repeat. Please advise status.

The Chairman informed the house that the issue has already been discussed earlier and necessary action is being taken. Hence, point is closed.

[Action: Point Closed]

N. The BE final print should show the time of printing

During the meeting, the representative of ACCAI submitted that the BE final print does not show the time of printing. Only shows date. They requested that the time also to be printed.

The Chairman directed the DC(EDI) to look into the matter and if required same may be taken up with the DG(System).

[Action: Point Closed]

O. Gate Pass without producing the hard copy of the OOC

During the meeting, the representative of ACCAI submitted that as per the present procedure, after Out Of Charge is given, they have to wait upto one hour before they get the printout. Then they take that print out to custodian counter and show this copy at the counter to generate the Gate Pass. This takes another thirty to forty minutes. Their point is that the customs system sends the OOC message on-line to MIAL system. Since they receive this information by full proof method, they should give the get the Gate Pass without insisting on the hard copy of the OOC. MIAL system will show that OOC has been obtained. This will save about two hours in dwell time.

The representative of MIAL informed that due to various regulatory requirements they have to take hard copy from the Importer and hence they will not be able to issue Gate Pass without procuring hard copy of the OOC. The Chairman accepted their contention and directed that point be closed.

[Action: Point Closed]

P. Refund of Drawback without involving any lengthy procedures.

During the meeting, the representative of ACCAI submitted that when the exporter is voluntarily coming forward to pay back the drawback a lengthy time consuming procedure is followed for accepting such payment. They suggested that procedure for accept of said payment be simplified.

The Chairman assured that the request will be looked into and necessary changes will be carried out in the procedure, if required.

[Action: ADC(X)]

Q. Issues with Traffic Police

In the instant meeting, the representative of ACCAI submitted that there are many outstation trucks coming into Mumbai with export cargo. All the entry points into

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Mumbai are closed from 7.00 AM to 11.00 AM and from 5.00 PM to 9.00 PM for outstation trucks. Due to morning closure, all trucks arrive at the ACC, by 12.30 PM and cause heavy congestion and delay in offloading. They suggested that all trucks meant for the Air Cargo Complex with export goods only, may be allowed to enter Mumbai during the restricted period. The drivers will carry with them a token which is generated on-line by the cargo agent and sent to the factory before departure of the truck. This token carries all details of the vehicle. This is proof that this vehicle is meant for ACC Mumbai. The police, on seeing this token, should allow the vehicle to pass through. This will greatly reduce the congestion in the cargo complex and exports will be uplifted on the booked flights. This will also reduce transaction cost as waiting periods will be eliminated.

The representative of MIAL suggested that MIAL and Customs Authorities should submit joint representation to the Traffic Police authority in this regard. The chairman also agreed the suggestion and directed the representative of MIAL to draft the representation.

[Action: MIAL]

बैठक का समापन अध्यक्ष महोदयों को धन्यवाद ज्ञापन के साथ हुआ।

The meeting ended with thanks to the Chairman.

यह स्थायी व्यापार सुविधा कमिटी के अध्यक्ष महोदयों आयुक्त महोदय (आयात) अंचल-III के अनुमोदन से निर्गत किया जाता है।

This issues with the approval of the Chairman of the PTFC, Commissioner of Customs (Import), Mumbai Customs Zone-III.

सुखजीत कुमार 9/5/18

(सुखजीत कुमार/Sukhjit Kumar)
अपर आयुक्त सीमाशुल्क (आयात)
Addl. Commissioner of Customs (Import)
हवाई माल संकुल, सहार, मुंबई
Air Cargo Complex, Mumbai

COPY TO:

1. Chief Commissioner of Customs, Zone-III, Mumbai - For kind information, please.
2. Pr. Commissioner / Commissioner of Customs, Import / Export / General, ACC.
3. All Addl./Jt./DC/AC Commissioner of Customs, Import / Export / General, ACC.
4. All members of PTFC meeting (via E-mail)
5. E &T Section/PSO Section ....for circulation in Export/General Commissionerate.
6. EDI Section- For uploading on ACC Website.
7. Office copy.

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